pose was "to encourage and promote the safe and efficient exploration for uranium resources within the Commonwealth, and to assure . . . that uranium mining and milling will be subject to statutes and regulations which protect the environment and the health and safety of the public." *Ibid.* The Assembly soon extended the ban "until a program for permitting uranium mining is established by statute." 1983 Va. Acts ch. 3. The Commonwealth has not established a permitting program, so the ban remains in force.

A slowdown in construction of new nuclear powerplants in the 1980s contributed to a "precipitous decline in the price of uranium ore." *Huffman* v. *Western Nuclear, Inc.*, 486 U. S. 663, 666–667, and n. 5 (1988). Rising prices in the first decade of the new millennium prompted renewed interest in mining the deposit, and Virginia Uranium lobbied to have the ban repealed. App. to Pet. for Cert. 222a; Brief for United States as *Amicus Curiae* 9.

When efforts to persuade the state legislature proved unsuccessful, Virginia Uranium brought this suit seeking a declaration that the ban is preempted by federal law and an injunction requiring the Commonwealth to issue uranium mining permits. App. to Pet. for Cert. 237a. Respondents, Virginia Department of Mines, Minerals, and Energy officials (together, the Commonwealth Defendants), moved to dismiss the complaint for failure to state a claim, and the District Court granted the motion. *Virginia Uranium, Inc.* v. *McAuliffe*, 147 F. Supp. 3d 462, 478 (WD Va. 2015).[1] The Court of Appeals for the Fourth Circuit affirmed, holding in principal part that because the Commonwealth's mining ban did not regulate an activity overseen by the NRC, there was

[1] The District Court also dismissed the Commonwealth's Governor and several other state officials as defendants on the ground that the Eleventh Amendment barred suit against them. *Virginia Uranium, Inc.* v. *McAuliffe*, 147 F. Supp. 3d 462, 467–468 (WD Va. 2015). Virginia Uranium did not appeal from that part of the District Court's decision.

no need to consider the purposes for which the ban was imposed. 848 F. 3d, at 597–598. Given the importance of the issue, and to resolve a division of authority among the Courts of Appeals, we granted Virginia Uranium's petition for a writ of certiorari. Compare *id.*, at 594–599 (case below), with, *e. g., Skull Valley Band of Goshute Indians* v. *Nielson*, 376 F. 3d 1223, 1246 (CA10 2004) (state laws grounded in nuclear safety concerns are preempted).

II

Under the Supremacy Clause, the "Constitution, and the Laws of the United States which shall be made in Pursuance thereof," are "the supreme Law of the Land." Art. VI, cl. 2. "Put simply, federal law preempts contrary state law." *Hughes* v. *Talen Energy Marketing, LLC*, 578 U. S. 150, 162 (2016).

This Court has delineated three circumstances in which state law must yield to federal law. *English*, 496 U. S., at 78–79. First, and most obvious, federal law operates exclusively when Congress expressly preempts state law. *Ibid.* Second, state law can play no part when "Congress has legislated comprehensively to occupy an entire field of regulation, leaving no room for the States to supplement federal law." *Hughes*, 578 U. S., at 163 (internal quotation marks omitted). Third, state law is rendered inoperative when it "actually conflicts with federal law," *English*, 496 U. S., at 79, as when a private party cannot "comply with both state and federal requirements," *Merck Sharp & Dohme Corp.* v. *Albrecht*, 587 U. S. 299, 303 (2019) (internal quotation marks omitted), or when state law "creates an unacceptable 'obstacle to the accomplishment and execution of the full purposes and objectives of Congress,'" *Wyeth* v. *Levine,* 555 U. S. 555, 563–564 (2009) (quoting *Hines* v. *Davidowitz*, 312 U. S. 52, 67 (1941)). Whatever the category of preemption asserted, "the purpose of Congress is the ultimate touchstone" in determining whether federal law preempts state law. *Hughes*, 578 U. S., at 163 (internal quotation marks omitted). Virginia Uranium invokes both field and obstacle preemption; I address each in turn.

A

Virginia Uranium's primary contention is that Congress has occupied the field of nuclear safety regulation, preempting state laws enacted because of concerns about the radiation safety of federally regulated activities. Defining the preempted field by reference to the purpose for which state laws were enacted finds "some support in the text of the [AEA]," *English*, 496 U. S., at 84, and, in particular, § 2021(k). Again, this provision states that "[n]othing in [§ 2021] shall be construed to affect the authority of any State . . . to regulate activities *for purposes other than protection against radiation hazards*." (Emphasis added.) Section 2021(k) presupposes federal preemption of at least some state laws enacted to guard "against radiation hazards." Virginia Uranium and the dissent read this subsection to include within the preempted sphere *all* state laws motivated by concerns about the radiation hazards of NRC-regulated activities. Brief for Petitioners 35; *post*, at 795–796. The Commonwealth Defendants would exclude from federal foreclosure state laws directed to activities not regulated by the NRC. *E. g.*, Tr. of Oral Arg. 33–34. The Commonwealth Defendants have the better reading of the statute.

1

The Commonwealth has forbidden only conventional uranium mining on private land, an activity all agree is not federally regulated. *E. g.*, *id.*, at 9–10, 17–18, 30. The controlling AEA provision, § 2092, triggers federal regulation only when source material is "remov[ed] from its place of deposit in nature." Federal authorities have long read that provision to preclude federal regulation of conventional uranium mining. *Ante*, at 768; *supra*, at 782. In contrast to the AEA's express provisions for uranium mining on public lands, §§ 2097–2098, the Act is nearly silent about conventional uranium mining on private lands. See *ante,* at 768–769. Indeed, insofar as the Act addresses private conventional mining, it does so to bar federal regulators from obtaining reports about ore "prior to removal from its place of deposit in nature." § 2095. Every indication, then, is that Congress left private conventional mining unregulated. And if Congress did not provide for regulation of private conventional mining, it is hard to see how or why state law on the subject would be preempted, whatever the reason for the law's enactment.

2

Virginia Uranium's argument to the contrary rests on § 2021(k), but that provision, correctly read, lends no support for Virginia Uranium's cause. By its terms, § 2021(k) addresses only state authority to regulate "activities" for nonradiological purposes. Read in context of § 2021 as a whole, "activities" means activities *regulated by the NRC.* See § 2021(c), (*l*), (m), (*o*); *ante*, at 769 (§ 2021(k) "might be described as a *non-preemption* clause").

The AEA's context and history are corroborative. Prior to enactment of § 2021(k), the Federal Government and States shared responsibility for most steps of the nuclear fuel cycle, with the former regulating primarily for public health and safety, and the latter regulating for economic and other nonradiological purposes. See *supra,* at 782–783. Section 2021 was designed "to heighten the States' role," *PG&E*, 461 U. S., at 209, by enabling federal regulators to cede their previously exclusive authority over the nuclear safety of several lower risk activities, § 2021(b). Given this aim, § 2021(k) is most sensibly read to clarify that the door newly opened for state regulation left in place pre-existing state authority "to regulate activities for purposes other than protection against radiation hazards." See *ante,* at 769. The House and Senate Reports are explicit on this point: Section

§ 2021(k) was "intended to make it clear that the bill does not impair the State[s'] authority to regulate activities of [federal] licensees for the manifold health, safety, and economic purposes other than radiation protection"; the bill simply provides a means for States to obtain heretofore exclusively federal authority to regulate these activities for "protection against radiation hazards." S. Rep. No. 870, 86th Cong., 1st Sess., at 12; accord H. R. Rep. No. 1125, 86th Cong., 1st Sess., 12 (1959). Nothing suggests that Congress "intended to cut back on pre-existing state authority outside the NRC's jurisdiction." *PG&E*, 461 U. S., at 209–210. That authority encompassed state laws regulating conventional uranium mining, even if enacted because of concerns about the radiological safety of postextraction, NRC-regulated steps in the nuclear fuel cycle.

3

Virginia Uranium leans most heavily on a statement in the Court's *PG&E* opinion: "[T]he Federal Government has occupied the entire field of nuclear safety concerns." 461 U. S., at 212. But in neither *PG&E* nor in later decisions in its wake, *Silkwood* v. *Kerr-McGee Corp.*, 464 U. S. 238 (1984), and *English*, 496 U. S. 72, did the Court rest preemption on the purposes for which state laws were enacted. Indeed, in all three, the Court held that the state laws at issue were not preempted. See *ante*, at 771–774.

Moreover, without gainsaying that it may sometimes be appropriate to inquire into the purpose for which a state law was enacted, *PG&E* calls for no such inquiry here. *PG&E* considered whether the AEA preempted a California law conditioning approval to build new nuclear plants on a finding that an adequate method existed for disposing of spent nuclear fuel. 461 U. S., at 197–198. The Court upheld the law because it was enacted out of concern for economic development, not because of radiation safety hazards. *Id.*, at 205, 213–216.

It is unsurprising that the *PG&E* Court asked why the California law had been enacted. The State's law addressed construction of a nuclear powerplant, an activity closely regulated by the Federal Government for nuclear safety purposes. See 42 U. S. C. §§ 2021(c)(1), 2132–2142; 10 CFR pt. 50 (2018). The Court therefore inquired whether the state law was enacted, in § 2021(k)'s words, "for purposes other than protection against radiation hazards." Here, in contrast, the Commonwealth's mining ban targets an exclusively state-regulated activity. See *ante,* at 771–774.[2]

4

I am not persuaded by the Solicitor General's argument that the Commonwealth's mining ban is preempted because it is a pretext for regulating the radiological safety hazards of milling and tailings storage. See Brief for United States as *Amicus Curiae* 28–30. To the degree the AEA preempts state laws enacted for certain purposes, § 2021(k) stakes out the boundaries of the preempted field, *i. e.,* state laws that apply to federally licensed activities and are driven by concerns about the radiological safety of those activities. We have no license to expand those boundaries.

The case on which the Solicitor General primarily relies, *National Meat Assn.* v. *Harris*, 565 U. S. 452 (2012), does not counsel otherwise. *National Meat* concerned a set of California laws that "dictat[ed] what slaughterhouses must do with pigs that cannot walk, known in the trade as nonambulatory pigs." *Id.,* at 455. The question presented: Did California's prescriptions conflict with the Federal Meat In-

[2] The dissent insists that we are bound by language in *Pacific Gas & Elec. Co.* v. *State Energy Resources Conservation and Development Comm'n*, 461 U. S. 190 (1983) (*PG&E*), unnecessary to that decision. *Post,* at 796–798. But as JUSTICE GORSUCH explains, *PG&E*'s inquiry into the purpose for which *some* state laws were enacted does not mean we must now extend that inquiry to *all* state laws. *Ante,* at 773 ("Being in for a dime doesn't mean we have to be in for a dollar.").

spection Act's express preemption of state law that imposed requirements "in addition to, or different than those made under" the Act? 21 U. S. C. § 678. One of the California provisions, a ban on the sale of meat or products from nonambulatory pigs, regulated a subject outside the scope of the Federal Meat Inspection Act. *National Meat*, 565 U. S., at 463. The Court nevertheless concluded that the sale ban fell within the scope of the Act's express preemption clause because it was intended to work together with other California provisions to impose additional requirements on slaughterhouse operations. *Id.*, at 463–464.

National Meat is not controlling here. No express preemption provision is involved. The mining ban sets no safety standards for federally supervised milling or tailings storage activities. True enough, the ban makes it far less likely, though not impossible, that such activities will take place in the Commonwealth.[3] In that regard, the Commonwealth's mining ban is more aptly analogized to state bans on slaughtering horses, upheld by courts of appeals and distinguished in *National Meat* from California's nonambulatory pig laws. Horse slaughtering bans, *National Meat* explained, "work[ed] at a remove from the sites and activities that the FMIA most directly governs" by ensuring that "no horses will be delivered to, inspected at, or handled by a slaughterhouse, because no horses will be ordered for purchase in the first instance." *Id.*, at 465, 467 (citing *Cavel Int'l, Inc.* v. *Madigan*, 500 F. 3d 551 (CA7 2007), and *Empacadora de Carnes de Fresnillo, S. A. de C. V.* v. *Curry*, 476 F. 3d 326 (CA5 2007)). The distinction drawn in *National Meat* thus supports this conclusion: A state law regulating an upstream activity within the State's authority is not pre-

[3] Were a similar deposit found over the state line, the mining ban at issue would not prevent uranium ore mined in North Carolina from being milled, and the resulting tailings stored, in the Commonwealth.

empted simply because a downstream activity falls within a federally occupied field.[4]

B

Nor is the Commonwealth's mining ban preempted as an "unacceptable obstacle to the accomplishment and execution of the full purposes and objectives of Congress." *Wyeth*, 555 U. S., at 563–564 (internal quotation marks omitted). Together, Virginia Uranium and the United States identify four ways in which the mining ban supposedly conflicts with federal purposes and objectives. None carry the day.

First, Virginia Uranium contends that the mining ban conflicts with the "delicate balance" federal law has struck between promoting nuclear power and ensuring public safety. Brief for Petitioners 55–56; see Brief for United States as *Amicus Curiae* 31–33. But the Federal Government does not regulate the radiological safety of conventional uranium mining on private land, so federal law struck *no* balance in this area.

Second, Virginia Uranium contends that the mining ban "*prohibit[s]* the achievement of one of Congress['] 'primary purpose[s]': 'the promotion of nuclear power.'" Brief for Petitioners 56 (quoting *PG&E*, 461 U. S., at 221). *PG&E*, however, dismissed the suggestion that Congress had a policy of promoting nuclear power "at all costs." *Id.*, at 222 (internal quotation marks omitted). Given the absence of federal regulation in point, it is improbable that the Federal Government has a purpose or objective of promoting conventional uranium mining on private land. Cf. *ante*, at 779.

[4] The distinction drawn here does not turn, as the dissent misperceives, *post*, at 800, on whether the state-regulated activity is upstream or downstream of the federally preempted field. The Commonwealth regulated an activity, conventional uranium mining, that Congress left to state regulation. Again, nothing in the AEA shows that Congress intended to preempt such a law based on the purpose for which it was enacted.

Virginia Uranium warns of dire consequences if all 50 States enact bans similar to the Commonwealth's. Brief for Petitioners 56–57. But, as the Court of Appeals explained, numerous domestic uranium recovery facilities are federally regulated (either because they sit on federal land or use unconventional mining techniques) and are "thus beyond the reach of any state bans"; and the AEA authorizes the Federal Government to develop uranium deposits on public lands and to acquire private deposits. 848 F. 3d, at 599; see 42 U. S. C. §§ 2096–2097. Federal purposes and objectives do not require judicial supplementation of the AEA's express provisions for maintaining the uranium supply. Cf. *ante,* at 780.

The dissent suggests that national security may require further domestic uranium production. *Post,* at 794, n. 2. If the Executive Branch—which presumably knows more about "the critical role of uranium to the country's energy industry and national defense," *ibid.*—agrees, it can arrange for acquisition of the site by the United States, and then for commencement of mining notwithstanding the Commonwealth's ban. Yet the site remains in private hands.

Third, Virginia Uranium argues that § 2021 provides the sole means for States to regulate radiological safety hazards resulting from milling and tailings storage, and that Virginia has effectively regulated milling and tailings storage without obtaining authority to do so through an adequate § 2021 agreement. Brief for Petitioners 57–59 (citing *Gade* v. *National Solid Wastes Management Assn.*, 505 U. S. 88, 98–101 (1992)); see Brief for United States as *Amicus Curiae* 33–34. As explained, see *supra,* at 786–789, 790–791, Virginia has not regulated the radiological safety of tailings storage; it has prohibited only an antecedent activity subject to exclusive state authority.

Finally, the United States contends that Virginia's mining ban frustrates federal purposes and objectives by "prevent[ing] the occurrence of" activities that Congress intended the

Federal Government to regulate. Brief for United States as *Amicus Curiae* 31 (quoting 848 F. 3d, at 600 (Traxler, J., dissenting)). But federal regulation of certain activities does not mean that States must authorize activities antecedent to those federally regulated. For example, federal regulation of nuclear powerplants does not demand that States allow the construction of such powerplants in the first place. *PG&E*, 461 U. S., at 222.

* * *

For the reasons stated, I concur in the Court's judgment affirming the judgment of the Court of Appeals.

CHIEF JUSTICE ROBERTS, with whom JUSTICE BREYER and JUSTICE ALITO join, dissenting.

Although one party will be happy with the result of today's decision, both will be puzzled by its reasoning. That's because the lead opinion sets out to defeat an argument that no one made, reaching a conclusion with which no one disagrees. Specifically, the opinion devotes its analysis to whether the field of uranium mining safety is preempted under the Atomic Energy Act, ultimately concluding that it is not. But no party disputes that. Rather, the question we agreed to address is whether a State can purport to regulate a field that is *not* preempted (uranium mining safety) as an indirect means of regulating other fields that *are* preempted (safety concerns about uranium milling and tailings). And on that question, our precedent is clear: The AEA prohibits state laws that have the purpose and effect of regulating preempted fields.

As relevant here, processing uranium ore involves three steps: mining, milling, and storing "tailings." *Mining* is the extracting of uranium ore from the ground; *milling* is the process of turning the substance into a usable form; and *tailings* are the leftover radioactive waste that must be safely stored.

There is no dispute over which of these fields the AEA reserves to the exclusive jurisdiction of the Nuclear Regulatory Commission. The parties agree that the field of uranium *mining* safety is not preempted. See Brief for Petitioners 3, 22, n. 4, 27; Reply Brief 8; Brief for Respondents 1; Brief for United States as *Amicus Curiae* 4, 14. And it is undisputed that radiological safety concerns about *milling* and *tailings* are preempted fields. See Brief for Petitioners 32; Tr. of Oral Arg. 36–37 (counsel for respondents); Brief for United States as *Amicus Curiae* 23. Indeed, that shared understanding was the basis of the question presented.[1]

Despite all this, the lead opinion insists that petitioners (hereafter the company) press an entirely different argument. "Before us, Virginia Uranium contends that the AEA (and only the AEA) unseats state uranium mining regulations," *ante*, at 767, but "almost immediately problems emerge," *ante*, at 768. Problems do immediately emerge in the opinion, but they are of its own making. The company does not argue that the AEA reserves the field of uranium *mining* safety. After attributing this failing argument to the company, the lead opinion then proceeds to explain why the argument must, in fact, fail. See *ante*, at 767–773.

Turning to the question presented, however, the company's theory of the case is fairly straightforward. The property at issue here contains the largest known uranium deposit in the country and one of the largest in the world.[2]

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[1] "Does the AEA preempt a state law that on its face regulates an activity within its jurisdiction (here uranium mining), but has the purpose and effect of regulating the radiological safety hazards of activities entrusted to the NRC (here, the milling of uranium and the management of the resulting tailings)?" Pet. for Cert. i.

[2] Oddly, the lead opinion and concurrence suggest that developing this site is unnecessary because domestic production accounts for less than ten percent of the uranium used in the country. See *ante*, at 780 (lead opinion); *ante*, at 791–792 (GINSBURG, J., concurring in judgment). But given the critical role of uranium to the country's energy industry and national defense, the near complete reliance on foreign sources of uranium—includ-

Shortly after its discovery, Virginia enacted a complete ban on uranium mining. According to the company, the ban was not motivated by concerns about mining safety. Instead, it was motivated by Virginia's desire to ban the more hazardous steps that come after mining—uranium milling and the storage of radioactive tailings—due to the Commonwealth's disagreement with the NRC over how to safely regulate those activities. And, crucially, Virginia has yet to put forward any other rationale to support the ban.[3] Thus, the question before us is whether, consistent with the AEA and our precedents, the Commonwealth may purport to regulate a non-preempted field (mining safety) with the purpose and effect of indirectly regulating a preempted field (milling and tailings). That should have made for an easy case.

Under our AEA precedents, a state law is preempted not only when it "conflicts with federal law," but also when its *purpose* is to regulate within a preempted field. *Pacific Gas & Elec. Co.* v. *State Energy Resources Conservation and Development Comm'n*, 461 U. S. 190, 212–213 (1983). Because "the Federal Government has occupied the entire field

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ing substantial imports from Russia, Kazakhstan, and Uzbekistan—would seem to suggest just the opposite. See App. to Pet. for Cert. 353a (detailing foreign sources of uranium imports); 42 U. S. C. § 2012(d) ("The processing and utilization of source, byproduct, and special nuclear material must be regulated in the national interest and in order to provide for the common defense and security and to protect the health and safety of the public."); Energy Futures Initiatives, Inc., The U. S. Nuclear Energy Enterprise: A Key National Security Enabler 18 (Aug. 2017) ("A vibrant domestic nuclear energy industry, including a healthy supply chain . . . is essential for the achievement of U. S. national security objectives.").

[3] As the lead opinion acknowledges, Virginia has thus far in the litigation accepted the company's claim that the actual purpose of the mining ban is to regulate the radiological safety of uranium milling and tailings storage. See *ante*, at 776. Virginia contends that if the case were to proceed past the pleadings stage, it could establish a nonsafety rationale for the ban. See Brief for Respondents 47. That may well be true. See *id.*, at 11 (discussing environmental concerns). But for our purposes today, we must resolve the case on the terms that it has come to us.

of nuclear safety concerns," a state law that is "grounded in [such] safety concerns falls squarely within the prohibited field." *Ibid.*; see also *English* v. *General Elec. Co.*, 496 U. S. 72, 84 (1990) (state regulations "motivated by [nuclear] safety concerns" are preempted by the AEA (citing 42 U. S. C. § 2021(k))). For example, even though a State may generally regulate its roads, it may not shut down all of the roads to a nuclear power plant simply because it disagrees with the NRC's nuclear safety regulations. Here, because Virginia has not even disputed that its uranium mining ban was "grounded in" its "nuclear safety concerns" about uranium milling and tailings, the company's preemption claim should not have been dismissed.

The lead opinion and the concurrence miss that simple analysis because they shrink from our AEA precedents, particularly *Pacific Gas*. In *Pacific Gas*, California had banned the construction of nuclear power plants until the State could ensure that new plants would have a viable method for permanently disposing of nuclear waste. See 461 U. S., at 197–198. On its face, the ban did not purport to regulate a preempted field; it did not regulate the *manner* in which nuclear power plants may be constructed or operated, which is a field preempted by the AEA. See *id.*, at 212. If it had, the Court noted, the ban "would clearly be impermissible." *Ibid.* The California statute instead purported to address the antecedent question *whether* new plants should be constructed at all—an area within the State's traditional authority over the generation and cost of electricity.

But the Court did not stop its preemption analysis there. Instead, it was "necessary" to look beyond the face of the statute to determine California's "rationale" for the ban. *Id.*, at 213. California had argued that it could exercise its traditional authority over power generation to "completely prohibit new construction until its safety concerns [we]re satisfied by the Federal Government." *Id.*, at 212. The Court flatly "reject[ed] this line of reasoning." *Ibid.* Because the AEA reserves the "field of nuclear safety concerns" to the Federal Government, a state law that was "grounded in" those concerns would fall "squarely within the prohibited field." *Id.*, at 212–213. In other words, if the purpose of California's ban on nuclear plant construction was to regulate radiological safety, it would be preempted. California's statute ultimately avoided that outcome, however, because the State had put forward an independent "nonsafety rationale"—namely, its concern that new nuclear plants would not be economically viable if they were unable to permanently dispose of nuclear waste. *Id.*, at 213. On that basis, the Court determined that the ban was not preempted. *Id.*, at 216 ("[W]e accept California's avowed economic *purpose* as the rationale for enacting [the statute]. Accordingly, the statute lies outside the occupied field of nuclear safety regulation." (emphasis added)).

Pacific Gas should control the outcome here. Like California's ban in that case, Virginia's ban on its face regulates a non-preempted field—uranium mining safety. Like the plaintiffs challenging the California ban, the mining company argues that the statute's purpose is really to regulate a preempted field—safety concerns about uranium milling and tailings. But unlike California in *Pacific Gas*, Virginia in this case has not put forward a "nonsafety rationale." That should have been the end of the story, at least at this stage of the litigation.

Neither the lead opinion nor the concurrence explain why this Court inquired into purpose in *Pacific Gas* but can dispense with that "necessary" step here, *id.*, at 213; they just say the Court can. See *ante*, at 772–773 (lead opinion); *ante*, at 789, n. 2 (opinion of Ginsburg, J.). At one point, the lead opinion suggests that the AEA "authorize[s]" a purpose inquiry only when a state law "comes close to trenching on core federal powers." *Ante*, at 772. But the opinion does not say where that rule comes from. Certainly not the statute or our precedents. And the lead opinion never explains why the safety concerns about nuclear plants in *Pacific Gas* are more "core" to the AEA than the safety concerns about uranium milling and tailings storage at issue here.

The central argument from my colleagues appears to be that the AEA authorizes a purpose inquiry only when a State "targets" or "seek[s] to regulate" an activity that is also regulated by the federal statute. *Ante*, at 770 (lead opinion); *ante*, at 789 (opinion of GINSBURG, J.). And because the Virginia statute *seeks* to regulate mining, the AEA "does not authorize any judicial inquiry into state legislative purpose in this case." *Ante*, at 772 (lead opinion); see *ante*, at 788–789 (opinion of GINSBURG, J.). But it is conceded that the mining ban was adopted because of radiological safety concerns about milling and tailings. That is why Virginia argues, as it must, that its mining ban would not be preempted even if it expressly stated that it was enacted due to the Commonwealth's disagreement with the NRC's nuclear safety regulations. Tr. of Oral Arg. 33. If such a statute does not "target" or "seek to regulate" a preempted field, what would?

States may try to regulate one activity by exercising their authority over another. That is the whole point of the purpose inquiry mandated by *Pacific Gas*. Indeed, *Pacific Gas* specifically "emphasize[d]" that the California law did *not* expressly seek to regulate "the construction or operation of a nuclear powerplant," that is, the statute on its face was not directed at a preempted field. 461 U. S., at 212.

The AEA's purpose inquiry is most useful precisely when the challenged state law does *not* purport to regulate a preempted field. If a State disagrees with the AEA's nuclear safety regulations, and thus wants to block nuclear development within its borders, it has myriad ways to do so through its broad police powers. Under the rule adopted by the lead opinion and the concurrence, so long as the State is not boneheaded enough to express its real purpose in the statute, the State will have free rein to subvert Congress's judgment on nuclear safety.

A State could, for instance, restrict the ability of a county to provide a nuclear facility with municipal services like law enforcement, fire protection, and garbage collection. If it wanted to target investors, a State could eliminate limited liability for the stockholders of companies that operate nuclear facilities. Although these examples may seem far-fetched, they have already happened. See *Skull Valley Band of Goshute Indians* v. *Nielson*, 376 F. 3d 1223, 1247–1248, 1250–1252 (CA10 2004). In *Skull Valley*, however, the Tenth Circuit correctly applied our precedent and concluded that the "state cannot use its authority to regulate law enforcement and other similar matters as a means of regulating radiological hazards." *Id.*, at 1248; see *Entergy Nuclear Vermont Yankee, LLC* v. *Shumlin*, 733 F. 3d 393 (CA2 2013) (applying *Pacific Gas* and concluding that a state statute was a pretext for regulating radiological safety). Neither the lead opinion nor the concurrence hazards an answer for cases like *Skull Valley*.

As these examples show, AEA preemption cannot turn on the label a State affixes to its regulations. That approach would simply invite evasion, which is why we have rejected it in our preemption cases more generally. For example, in *National Meat Assn.* v. *Harris*, 565 U. S. 452 (2012), we addressed a preemption challenge involving slaughterhouses in California. A federal statute preempted state regulation of slaughterhouses' front-end procedures for inspecting, handling, and slaughtering livestock. California, however, had regulated the back-end operations of slaughterhouses by prohibiting the *sale* of meat from livestock that had not been inspected, handled, and slaughtered according to the State's regulations. *Id.*, at 455, 463–464.

Although the federal statute's preemption clause did "not usually foreclose state regulation of the commercial sales activities of slaughterhouses," we unanimously held that California's sales regulation was preempted because it was a transparent attempt to circumvent federal law. *Id.*, at 463 (internal quotation marks omitted). Concluding otherwise, we noted, would allow a State to "impose any regulation on slaughterhouses just by framing it as a ban on the sale of meat produced in whatever way the State disapproved." *Id.*, at 464. And that "would make a mockery of the [federal statute's] preemption provision." *Ibid.*; see also *Engine Mfrs. Assn.* v. *South Coast Air Quality Management Dist.*, 541 U. S. 246, 255 (2004) (stating that it "would make no sense" to allow a state regulation to evade preemption simply because it addressed the purchase, rather than manufacture, of a federally regulated product).

The concurrence argues that *National Meat* is distinguishable because there the State regulated a downstream, nonpreempted activity (sale of meat) in an effort to regulate an upstream, preempted activity (processing of livestock). Here, however, Virginia's regulation is upstream (mining) and the preempted activity is downstream (milling and tailings). *Ante*, at 790–791. That's true but beside the point. Regardless whether the state regulation is downstream like *National Meat*, upstream like here and *Pacific Gas*, or entirely out of the stream like *Skull Valley*, States may not legislate with the purpose and effect of regulating a federally preempted field.[4]

[4] In a footnote, the concurrence appears to reject its own analysis, stating that it makes no difference whether the state law is upstream or downstream of the federally preempted field. See *ante*, at 791, n. 4. Instead, the concurrence contends, the difference is that here the Commonwealth "regulated an activity, conventional uranium mining, that Congress left to state regulation." *Ibid.* But that is equally true in *National Meat*, where the State had likewise regulated an activity, the sale of meat, that Congress left to state regulation. See 565 U. S., at 463. The concurrence and lead opinion also note that *National Meat* involved an "express" preemption provision whereas this case does not. *Ante*, at 775, n. 3 (lead opinion); *ante*, at 790 (opinion of GINSBURG, J.). But they do not explain why that matters, and there's no reason it should. In both cases, the plaintiffs alleged that the State regulated an undisputedly non-preempted activity as an indirect means to regulate an undisputedly preempted activity.

That common sense approach is consistent with the text of the AEA, which recognizes that States continue to have authority "to regulate activities for *purposes* other than protection against radiation hazards." 42 U. S. C. § 2021(k) (emphasis added). The lead opinion finds this purpose-based approach discomfiting, citing the "well-known conceptual and practical" difficulties about inquiring into legislative motive. *Ante*, at 776. The statute and our precedent plainly require such an approach here, however, and the difficulty of the task does not permit us to choose an easier way. I respectfully dissent.

MANHATTAN COMMUNITY ACCESS CORP. ET AL. *v.* HALLECK ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

No. 17–1702. Argued February 25, 2019—Decided June 17, 2019

New York state law requires cable operators to set aside channels on their cable systems for public access. Those channels are operated by the cable operator unless the local government chooses to itself operate the channels or designates a private entity to operate the channels. New York City (the City) has designated a private nonprofit corporation, petitioner Manhattan Neighborhood Network (MNN), to operate the public access channels on Time Warner's cable system in Manhattan. Respondents DeeDee Halleck and Jesus Papoleto Melendez produced a film critical of MNN to be aired on MNN's public access channels. MNN televised the film. MNN later suspended Halleck and Melendez from all MNN services and facilities. The producers sued, claiming that MNN violated their First Amendment free-speech rights when it restricted their access to the public access channels because of the content of their film. The District Court dismissed the claim on the ground that MNN is not a state actor and therefore is not subject to First Amendment constraints on its editorial discretion. Reversing in relevant part, the Second Circuit concluded that MNN is a state actor subject to First Amendment constraints.

Held: MNN is not a state actor subject to the First Amendment. Pp. 808–809.

(a) The Free Speech Clause of the First Amendment prohibits only *governmental*, not *private*, abridgment of speech. See, *e. g., Denver Area Ed. Telecommunications Consortium, Inc.* v. *FCC*, 518 U. S. 727, 737. This Court's state-action doctrine distinguishes the government from individuals and private entities. Pp. 808–816.

(1) A private entity may qualify as a state actor when, as relevant here, the entity exercises "powers traditionally exclusively reserved to the State." *Jackson* v. *Metropolitan Edison Co.*, 419 U. S. 345, 352. The Court has stressed that "very few" functions fall into that category. *Flagg Bros., Inc.* v. *Brooks*, 436 U. S. 149, 158. The relevant function in this case—operation of public access channels on a cable system—has not traditionally and exclusively been performed by government. Since the 1970s, a variety of private and public actors have operated

public access channels. Early Manhattan public access channels were operated by private cable operators with some help from private nonprofit organizations. That practice continued until the early 1990s, when MNN began to operate the channels. Operating public access channels on a cable system is not a traditional, exclusive public function. Pp. 809–811.

(2) The producers contend that the relevant function here is more generally the operation of a public forum for speech, which, they claim, is a traditional, exclusive public function. But that analysis mistakenly ignores the threshold state-action question. Providing some kind of forum for speech is not an activity that only governmental entities have traditionally performed. Therefore, a private entity who provides a forum for speech is not transformed by that fact alone into a state actor. See *Hudgens* v. *NLRB*, 424 U. S. 507, 520–521. Pp. 811–813.

(3) The producers note that the City has designated MNN to operate the public access channels on Time Warner's cable system, and that the State heavily regulates MNN with respect to those channels. But the City's designation is analogous to a government license, a government contract, or a government-granted monopoly, none of which converts a private entity into a state actor—unless the private entity is performing a traditional, exclusive public function. See, *e. g.*, *San Francisco Arts & Athletics, Inc.* v. *United States Olympic Comm.*, 483 U. S. 522, 543–544. And the fact that MNN is subject to the State's extensive regulation "does not by itself convert its action into that of the State." *Jackson*, 419 U. S., at 350. Pp. 814–816.

(b) The producers alternatively contend that the public access channels are actually the City's property and that MNN is essentially managing government property on the City's behalf. But the City does not own or lease the public access channels and does not possess any formal easement or other property interest in the channels. It does not matter that a provision in the franchise agreements between the City and Time Warner allowed the City to designate a private entity to operate the public access channels on Time Warner's cable system. Nothing in the agreements suggests that the City possesses any property interest in the cable system or in the public access channels on that system. Pp. 816–818.

882 F. 3d 300, reversed in part and remanded.

Kavanaugh, J., delivered the opinion of the Court, in which Roberts, C. J., and Thomas, Alito, and Gorsuch, JJ., joined. Sotomayor, J., filed a dissenting opinion, in which Ginsburg, Breyer, and Kagan, JJ., joined, *post*, p. 819.